

M/S P.S.S. Taxcon Sadikpur v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 April 2025 · 2025:AHC:63904-DB · Writ-C No. 12667 of 2025 · **Writ disposed of; Clause 6.5 authority directed to decide the pending representation.**

HEADNOTE

A writ challenging disconnection of supply, with a representation still pending, was disposed of by directing the Clause 6.5 authority to treat that representation as one under Clause 6.5 of the Electricity Supply Code, 2005 and to pass a reasoned order after hearing, without any merits determination of the disconnection or restoration.

FACTUAL SUMMARY

The petitioner, M/S P.S.S. Taxcon Sadikpur, challenged under Article 226 the order dated 31 December 2024 by which respondent no. 5 disconnected electricity to its unit, and sought a mandamus directing restoration of the connection. Counsel submitted that, raising those grievances, the petitioner had already filed a representation before the respondent-authority on 27 December 2024, but that representation had not yet been decided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

Where disconnection of supply is challenged and a representation remains undecided, the authority dealing with Clause 6.5 of the Electricity Supply Code, 2005 is directed to treat that representation as one under Clause 6.5 and to pass a reasoned order in accordance with law after hearing the consumer, within four weeks; the writ is disposed of without deciding the merits of disconnection or restoration. ¶ 5

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging disconnection of supply, with a representation still pending, was disposed of by directing the Clause 6.5 authority to treat that representation as one under Clause 6.5 of the Electricity Supply Code, 2005 and to pass a reasoned order after hearing ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 31 DECEMBER 2024 DISCONNECTION AND ENTITLEMENT TO RESTORATION

The Court did not examine the disconnection or restoration on merits, remitting the pending representation to the Clause 6.5 authority. ¶ 4-6